GROUP ASSIGNMENT 2 (2026)

Group 3 · Group Members

No.	Student ID	Full Name	Participation Rate (%)
1	66011078	Mr. Natachat Teecharcharn	
2	66011097	Mr. Nutdanai Jindadang	
3	66011104	Miss Pamika Chantin	
4	66011106	Mr. Panas Sri-Anant	
5	66011126	Mr. Pasit Larpkittipanich	
6	66011128	Mr. Passakorn Laksanakorn	

Course Details

Course	Instructor	Submission date	Case
Ethics and Law for Financial Engineers	**Dr. Chatchai Lapprathana**	**21 October 2026**	**TSR market manipulation**

Securities and Exchange Act B.E. 2535 (1992), as amended

Manipulating the Price of TSR Shares

Securities and Exchange Act B.E. 2535 (1992) · Case Study

Legal scope

Unfair securities trading under Sections 244/3 and 244/5, the criminal penalties in Sections 296–296/2, and the civil sanction route in Sections 317/1–317/8.

The case at a glance

Conduct period **22 Jun – 31 Aug 2022**	Trading days **47**
Civil Sanction Committee (Jan 2026) **THB 32,327,329**	Civil Court claim (May 2026) **THB 43,018,879.32**

Facts as found by the SEC and the Civil Sanction Committee; no court judgment reported as of October 2026.

The pattern



Illustration: the price lifted step by step (not actual TSR data).

Roadmap: What We Will Cover

Part	Topic	What we cover	Key sections of the Act
01	**News**	Sources (all dated 2026) and the key players in the case	s.238 (scope of the Division)
02	**Facts**	What happened, when, and why: the conduct, the order book, the motive and the timeline	Facts as found by the SEC and the CSC
03	**Law**	Market manipulation and the legal presumptions that prove it	s.238, 244/3, 244/4, 244/5
04	**Analysis**	Element by element: does the conduct fit? Which other offences were considered?	s.244/3 (1)(2); s.240–242, 244/6–244/7
05	**Penalties**	Criminal and civil sanctions, applied to TSR, and the parallel MSC case	s.296–296/2, 297/1; s.317/1–317/8

Securities and Exchange Act B.E. 2535 (1992), as amended

The News: Our Sources

Date	Outlet and headline	URL
23 Jan 2026	**มิติหุ้น (Mitihoon)** ก.ล.ต. ใช้มาตรการลงโทษทางแพ่งกับผู้กระทำความผิด 1 ราย กรณีสร้างราคาหรือปริมาณการซื้อขายหุ้น TSR	https://www.mitihoon.com/2026/01/23/611929/
24 Jan 2026 **MAIN NEWS**	**หุ้นสมาร์ท (Hoonsmart)** ก.ล.ต.สั่งปรับ “ภรัณยา รุจนพรพจี” กว่า 32 ลบ. ปั่นหุ้น TSR	https://hoonsmart.com/archives/400329
26 Mar 2026 **Related case**	**ฐานเศรษฐกิจ (Thansettakij)** ก.ล.ต. ลงดาบ ‘ภรัณยา รุจนพรพจี’ กรณีปั่นหุ้น MSC	https://www.thansettakij.com/finance/stockmarket/654988
11 May 2026	**ฐานเศรษฐกิจ (Thansettakij)** ก.ล.ต. ส่งฟ้อง ‘ภรัณยา รุจนพรพจี’ คดีปั่นหุ้น TSR เรียกชำระ 43 ล้านบาท	https://www.thansettakij.com/finance/658785
11 May 2026	**หุ้นสมาร์ท (Hoonsmart)** ก.ล.ต.ขออัยการฟ้อง คดีสร้างราคาหุ้น TSR	https://hoonsmart.com/archives/417813

Why Hoonsmart (24 Jan 2026) is our main news

The most complete account: period, conduct, motive and the sections the SEC cited. Every source is dated after 1 January 2026.

Law used in this presentation

Securities and Exchange Act B.E. 2535 (1992), as amended (course English translation): ss.238–244/7, 296–296/2, 317/1–317/8.

Mitihoon (23 Jan 2026); Hoonsmart (24 Jan & 11 May 2026); Thansettakij (26 Mar & 11 May 2026)

The Players: Who's Who in the Case

The People and Companies

The alleged offender

นางสาวภรัณยา รุจนพรพจี, an individual investor reported as a major shareholder of SABUY

The stock

TSR: Thiensurat PCL (now TSR Living Solution PCL), listed on the SET

The beneficiary

SABUY: Sabuy Technology PCL, which held TSR shares as an investment

The Authorities

The detector

Stock Exchange of Thailand: flagged the trading and referred it to the SEC (Oct 2022)

The enforcers

SEC Office investigates; the Civil Sanction Committee (CSC), chaired by the Attorney-General (s.317/3), sets civil sanctions

The next stage

Public prosecutor and Civil Court; AMLO for money-laundering review

Hoonsmart (24 Jan 2026); Thansettakij (11 May 2026); Securities and Exchange Act s.317/3

The Facts: What Happened

Period

47

trading days

Conduct period
22 Jun – 31 Aug 2022

Stock
TSR, listed on the SET

Facts as found by the SEC and the Civil Sanction Committee; no court has ruled yet.

Conduct

1 · Hitting the offer (เคาะซื้อ)

Placed buy orders against the sell side, sweeping the offers continuously to push the price up.

2 · Holding the bid (ครอง Bid)

Kept large buy orders at the 1st and 2nd best bid prices, so other buyers had to pay more.

Both patterns were repeated day after day across the whole 47-day period.

Result

Price effect

TSR's price rose step by step, driven by her orders rather than genuine demand.

Used later in

Law
s.244/5(5): obstructing others

Analysis
s.244/3 (1) and (2)

Hoonsmart (24 Jan 2026); Mitihoon (23 Jan 2026)

The Facts: Inside the Order Book

Hypothetical Order Book

Bid volume	Bid	Offer	Offer volume
2,500,000	3.80	3.82	40,000
1,800,000	3.78	3.84	55,000
60,000	3.76	3.86	30,000
45,000	3.74	3.88	70,000
30,000	3.72	3.90	25,000

Her large bid orders at levels 1 and 2

Reading the board

Left = Bid (buyers' orders) · Right = Offer (sellers' orders).

Illustration only: the numbers are hypothetical, not actual TSR data.

How the Pattern Works

1

Sweep

She buys up every offer at 3.82, so the last traded price ticks up.

2

Wall

She parks huge bids at 3.80 and 3.78; the board shows 'strong demand'.

3

Squeeze

Real buyers cannot get filled at the bid, so they pay the offer or higher. Repeat.

The Facts: The Motive — Why Push TSR Up?

Motive 1 · Make SABUY's Profit Look Better

Push TSR's price up

Buy-side pressure from 22 Jun 2022

Quarter-end: 30 Jun 2022

Q2/2022 closes 8 days later

SABUY re-measures TSR

Investment carried at fair value

Paper gain in Q2 profit

Earnings look better, nothing sold

Motive 2 · Trading Profit

Profit from the price spread: buy low, lift the price, then sell higher.

Buy low → **Lift the price** → **Sell higher**

Why It Matters in Law

Motive is evidence of intent

A clear motive is evidence of intent, the key element of Section 244/3(2).

"… on a continued basis with an intent to cause the price or the volume of such securities trading to be inconsistent with the normal market condition."

Hoonsmart (24 Jan 2026); Mitihoon (23 Jan 2026); Securities and Exchange Act s.244/3(2)

The Facts: Timeline of the Case

2022 · The Conduct

22 Jun 2022
Manipulation of TSR begins

30 Jun 2022
Q2/2022 quarter-end: SABUY values its TSR shares

31 Aug 2022
Conduct ends after 47 trading days

Oct 2022
SET refers the case to the SEC

~3 yrs

investigation

2026 · Enforcement

23 Jan 2026
CSC civil sanction: THB 32.3M, 6-month trading ban, 12-month director ban

26 Mar 2026
Parallel MSC case sent to court (THB 332.3M)

11 May 2026
She refuses; SEC asks the prosecutor to sue for THB 43.0M + interest; AMLO notified

Status: no court judgment reported as of October 2026.
All facts are as found by the SEC and the CSC. About three years passed between the SET referral (Oct 2022) and the CSC decision (Jan 2026).

Mitihoon (23 Jan 2026); Hoonsmart (24 Jan & 11 May 2026); Thansettakij (26 Mar & 11 May 2026)

The Law: Section 244/3 — Market Manipulation

Scope, s.238: the Division applies to listed securities and securities traded in the over-the-counter centre. TSR is listed on the SET, so it is in scope.

Section 244/3 (1) · Misleading Others

Statutory text

"placing a trading order or trading securities in such a way that misleads other persons regarding the price or volume of the securities trading"

What it targets

The effect: other investors are misled about the price or volume.

In the TSR case

Investors saw 'strong demand' on the board that her own orders created.

Penalty: s.296
≤ 2 years' prison, or a fine of THB 0.5M – 2M, or both

Section 244/3 (2) · Continuous Trading with Intent

Statutory text

"placing a securities trading order or trading securities on a continued basis with an intent to cause the price or the volume of such securities trading to be inconsistent with the normal market condition"

What it targets

The conduct and the mind: continuous orders, with intent to make price or volume abnormal.

In the TSR case

47 trading days of orders, with a quarter-end motive to lift TSR.

Penalty: s.296/1 (heavier)
≤ 5 years' prison, or a fine of THB 1M – 5M, or both

Securities and Exchange Act B.E. 2535, ss.238, 244/3, 296, 296/1

The Law: Section 244/5 — Legal Presumptions

Acts Presumed to Be Manipulation · s.244/5

1	Trades with no change in beneficial ownership	
2	Buying while you or an associate sell a similar amount, at a similar price and time	
3	Selling while you or an associate buy a similar amount, at a similar price and time	
4	Placing, modifying or cancelling orders in the pre-open or pre-close to push the opening or closing price	CITED
5	Placing, modifying or cancelling orders that obstruct others, forcing them to trade at a worse price	CITED

Why It Matters

The burden shifts.

Once the SEC proves conduct (4) or (5), the law presumes the 'misleading' or 'abnormal price' element of s.244/3. She must rebut it.

Cited by the SEC
s.244/5 (4) and (5)

Exceptions · s.244/4

- Price stabilisation under an underwriting agreement
- Share repurchase projects
- Trades under SEC notification rules

None applies to TSR.

Securities and Exchange Act B.E. 2535, ss.244/4, 244/5; Hoonsmart (24 Jan 2026)

The Analysis: Applying Section 244/3 (1)

Element	Facts in the TSR case	Result
Any person	An individual: นางสาวภรัณยา รุจนพรพจี	**Met**
Listed security (s.238)	TSR shares, listed on the SET	**Met**
Placing orders or trading	Buy orders hitting the offers; large bids at levels 1–2	**Met**
Misleads others on price or volume	Investors saw ‘strong demand’ that was artificial; presumption s.244/5(5)	**Met (presumed)**
Intent (Criminal Code s.59)	Repeated for 47 trading days with a clear financial motive	**Likely met**

Conclusion
All elements of s.244/3(1) are satisfied, so the criminal penalty in s.296 or the civil sanction in s.317/1(1) applies.

Presumption relied on
s.244/5(5): obstructing others

Securities and Exchange Act ss.238, 244/3(1), 244/5(5); Criminal Code s.59; Hoonsmart (24 Jan 2026)

The Analysis: Applying Section 244/3 (2)

Element	Facts in the TSR case	Result
Placing orders or trading	Same conduct as in s.244/3(1): hitting the offers and walling the bids	**Met**
On a continued basis	Day after day for 47 trading days (22 Jun – 31 Aug 2022)	**Met**
Intent to make price or volume abnormal	Goal: lift TSR for SABUY's Q2 fair-value gain and a trading profit; presumptions s.244/5(4)(5)	**Met**

Our inference

The news gives no pre-open or pre-close detail, but the SEC cited s.244/5(4). We infer orders aimed at the closing price, especially at quarter-end (30 Jun 2022).

Conclusion

The conduct fits both (1) and (2), matching the SEC's charge: s.244/3(1)(2) with s.244/5(4)(5).

Heavier route for (2): s.296/1 (criminal) or s.317/1(1) (civil).

Securities and Exchange Act ss.244/3(2), 244/5(4)(5), 296/1; Hoonsmart (24 Jan 2026)

The Analysis: Other Offences Considered

Section	Offence	In the TSR news	Result
s.240	False or misleading statements likely to affect the price	No false information was spread	**Ruled out**
s.241	Misleading analysis or forecast given to the public	No analysis or forecast involved	**Ruled out**
s.242	Trading on inside information	No inside information alleged	**Ruled out**
s.244/6	Presumed principal: shared or borrowed accounts, paying for others	No shared or borrowed accounts reported	**Ruled out**
s.244/7	Orders that delay or disrupt the trading system	No delay to the trading system	**Ruled out**

Offences Actually Charged

✓ **s.244/3 (1)(2)**

with presumptions s.244/5 (4)(5)
Matches the SEC's charge in the news.

Penalty sections that follow
s.296 for (1) · s.296/1 for (2) · s.296/2 if a benefit was gained

Method: we checked every other offence in Division 1 (Sections 238–244/7) against the facts reported in the news.

Securities and Exchange Act ss.240, 241, 242, 244/3, 244/5, 244/6, 244/7, 296–296/2

The Penalties: Criminal Penalties, s.296 – 296/2

Section 296

For s.244/3 (1)

≤ 2 yrs

prison, or a fine of THB 0.5M – 2M, or both

Section 296/1

For s.244/3 (2)

≤ 5 yrs

prison, or a fine of THB 1M – 5M, or both

Section 296/2

If a benefit was gained

≤ 2×

the benefit as the fine, never below the s.296 or s.296/1 minimum

s.297/1 · Extra Court Orders

- Pay back the benefit (remitted to the State)
- Trading ban ≤ 5 years
- Director/executive ban ≤ 10 years
- Reimburse SEC investigation costs

Money Laundering

Predicate offence under the Anti-Money Laundering Act B.E. 2542, so the SEC also notified AMLO (11 May 2026).

Securities and Exchange Act ss.296, 296/1, 296/2, 297/1; Thansettakij (11 May 2026)

The Penalties: The Civil Sanction Route

1 · Referral

s.317/1 (1)

Unfair trading under s.296 or s.296/1 can be handled by civil sanction.

s.317/6

SEC submits the case to the Civil Sanction Committee (CSC). If the CSC declines, criminal proceedings start.

2 · Offender's Choice

Consents · s.317/7

Letter of consent; paying in full ends the right to criminal prosecution. Default: SEC petitions the court within 3 years.

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Refuses · s.317/8

SEC sues in court; interest runs from the filing date; the criminal right ends only once the court-ordered sanction is paid in full.

3 · Sanctions Available

s.317/4 · five sanctions

1. Civil penalty
2. Pay back the benefit
3. Trading ban ≤ 5 years
4. Director ban ≤ 10 years
5. Reimburse SEC costs

s.317/5 (1) · civil penalty

≤ 2× the benefit, minimum THB 0.5M; if the benefit can't be calculated, THB 0.5M – 2M

Securities and Exchange Act ss.317/1, 317/4–317/8

The Penalties: Civil Sanctions Applied to TSR

Jan 2026 · Civil Sanction Committee

THB 32,327,329

Civil penalty + benefit + SEC costs

- Trading ban **6 months**
- Director ban **12 months**

Refused

s.317/8

May 2026 · Civil Court Claim

THB 43,018,879.32

+ interest from the filing date

- Trading ban **Legal maximum (≤ 5 yrs)**
- Director ban **Legal maximum (≤ 10 yrs)**

+33%

THB 10.69M more than the CSC amount

Full payment

is the only way the criminal right ends (s.317/8)

Pending

No court judgment reported as of October 2026

Hoonsmart (24 Jan & 11 May 2026); Thansettakij (11 May 2026); Securities and Exchange Act s.317/8

The Penalties: A Pattern — The Parallel MSC Case

Case	Company	CSC amount	Civil Court claim	Claim ÷ CSC
TSR	Thiensurat PCL (now TSR Living Solution PCL)	THB 32,327,329 (Jan 2026)	THB 43,018,879.32 (11 May 2026)	**1.33×**
MSC	Metro Systems Corporation PCL	THB 249,848,464 (Dec 2025)	THB 332,307,757.52 (26 Mar 2026)	**1.33×**

1 Same offender, same offence

Manipulating the price or volume of a listed stock

2 Same choice

Her co-offender consented; she refused, as in TSR

3 Same multiplier

Both court claims are about 1.33× the CSC amount

What the pattern shows: in both cases, refusing the CSC sanction led to a court claim about one-third higher, plus interest and the maximum bans requested.

Thansettakij (26 Mar 2026); Hoonsmart (24 Jan & 11 May 2026)

Conclusion: Key Takeaways

01 · The Facts

For 47 trading days, hitting offers and walling bids lifted TSR, to boost SABUY's Q2/2022 fair-value gain and earn a spread.

Key figure
47 trading days (22 Jun – 31 Aug 2022)

02 · The Law

The conduct fits s.244/3(1) and (2); presumptions in s.244/5(4)(5) shift the burden; no s.244/4 exception applies.

Key sections
s.244/3 (1)(2) · s.244/5 (4)(5)

03 · The Penalties

Criminal exposure of up to 5 years' prison and fines up to 2× the benefit; the SEC chose the civil route (s.317/1–317/8).

Key sections
s.296–296/2 · s.317/1–317/8

04 · The Lesson

Refusing costs more: THB 32.3M became a THB 43.0M claim plus interest, and criminal risk stays until she pays.

Key figure
THB 32.3M → THB 43.0M (+33%)

Thank You

Group 3 · TSR Market Manipulation Case

Questions and discussion

Group Assignment 2 (2026) · Ethics and Law for Financial Engineers
Instructor: Dr. Chatchai Lapprathana

Main news · Hoonsmart, 24 Jan 2026
https://hoonsmart.com/archives/400329

Follow-up · Thansettakij, 11 May 2026
https://www.thansettakij.com/finance/658785



Illustration only (not actual TSR data).